

22 October 2025

Secretariat of the ICC International Court of Arbitration
33-43 avenue du Président Wilson 75116 Paris, France
Via ICC Case Connect and email

Re: Case No. 29534/ICA3 – Additional Comments related to the Challenge to the Appointment of
Sole Arbitrator under Article 14 ICC Rules

Dear Members of the Secretariat,

With its letter dated 16 October 2025, the Secretariat of the ICC International Court of Arbitration acknowledged receipt of the sole arbitrator's and Respondents' comments dated 14 October on Claimant's challenge dated 7 October 2025 (respectively) and invited the parties to submit any additional comments they may have by 22 October 2025. Within the deadline set, Claimant hereby respectfully submits its additional comments as set out below.

For the sake of avoiding repetitions, Claimant refers to previous correspondence, in particular the challenge dated 7 October 2025 ("**Challenge**"). These additional comments are related to selected parts of the remarks made by the Sole Arbitrator and Respondents.

Comments related to the remarks of the Sole Arbitrator

As repeatedly stressed by Claimant, the present dispute between the Parties is based on a Contract governed by English law and mandates a Tribunal with legal background under English law, including expertise in contractual interpretation, shareholder rights and remedies, joint venture arrangements, and put option mechanics under English law, i.e. with substantive knowledge of and expertise in English law as the law governing the contract the present arbitration proceedings are based on.

While Claimant reiterates its respect towards Ms. Schäfer's integrity, experience and competence in general, her comments confirm that she unfortunately lacks the relevant English law background and specific knowledge and experience relevant in the present case:

Firstly, the experience in international commercial arbitration (point (i) of the Sole Arbitrator's comments) relates to *complex financial disputes* Ms. Schäfer has been involved with since 2022. These matters represent *financial* disputes (except for the fourth bullet-point referring to a matter mentioning a put-option but again being a finance dispute) and not (post-) M&A and shareholder disputes, in addition to these matters not being governed by English law.

Secondly, the section addressing previous experience with Austrian and English law applicable (point (ii) of the Sole Arbitrator's comments) refers to experience with English substantive and procedural law *in particular in the context of finance project*. Besides this experience potentially dating prior to 2015, these matters indeed also represent *financial* disputes, with one exception related to a put-option (included in the last bullet-point), which again appears not to have been governed by English law.

Consequently, the highlighted experience suggests that the sole arbitrator has *not* been involved in M&A or shareholder rights disputes applying English law, or even under Austrian or German law. A lack of prior exposure to the governing law and the subject matter of the dispute creates – on the one

side, also in general – a tangible risk of procedural inefficiency and additional cost, as the tribunal may need to rely on external (legal) experts for English law matters, contrary to the parties’ intent for efficient adjudication; and – on the other side, in particular in the present case – it goes against the focus and qualifications assumed when concluding the SHA. This is all even more applicable due to the tribunal consisting of one arbitrator only (where respective experience cannot be supplemented by other members of a panel).

Claimant notes that under English law, *finance* matters on the one side and (*post*) *M&A and Shareholder* matters on the other side are substantially different:

- Under English law, finance and M&A/shareholder matters operate within distinct regimes with materially divergent legal doctrines. Financing transactions are governed by standardised instruments (such as the LMA and ISDA forms), they are interpreted through market agreed and established literal construction and enforced with maximum textual rigidity. Breaches yield fixed-sum claims; defaults trigger acceleration; and equitable discretion is barred to the maximum extent a predominantly "common law" system will allow. It is by concerted design that fiduciary obligations and equities are excluded in financial remedies.
- In sharp contrast, M&A and shareholder disputes revolve around bespoke contractual frameworks and relationships that engage a much more purposive construction guided by "equity". Courts routinely apply fiduciary principles, doctrines of "unfair prejudice" and "legitimate expectations" and valuation-based remedies. These principles form the bedrock of English corporate law. They operate within common law jurisprudence governed by *stare decisis*, where obligations and relief are continuously shaped by precedents and not by mechanical enforcement. Warranties further illustrate the divergence. In finance transactions, they function as conditional triggers, while in M&A transactions they allocate risk to support claims for diminution in share value. Courts evaluating shareholder exits, put option enforcement, or governance routinely rely on common law and equitable reasoning. These features are purposively excluded or "exculpated" from structured finance practice.

English jurisprudence has long recognized these fields to be incongruent in method and substance. A practitioner versed in trade or structured finance may be wholly unacquainted with the remedial, fiduciary, and equitable doctrines that govern English shareholder and joint venture disputes.

In summary, while Ms. Schäfer’s qualifications are indeed exceptional, the present case demands an arbitrator with different background and without such tight relationships to the country only one side is domiciled and based in.

Comments related to the remarks of Respondents

Respondents’ statement that Claimant attempts to frame Ms. Schäfer’s profile as Austria-centric were unfounded¹ is based on a very creative interpretation of the “strategical positioning” of the law office Ms. Schäfer is Partner in, and the fact that she resides in France (the latter being uncontested).

The law firm Zeiler and Partner Attorneys-at-law, specifically Zeiler Rechtsanwälte GmbH, is based in Austria and registered with the Vienna Commercial Court. Claimant refers to the homepage of the office

¹ Respondents’ comments dated 14 October 2025, page 3.

as well as to the bottom line of the letter of the Sole Arbitrator including the name as well as the address (in Austria), the phone number (in Austria) and the company registry number, all leading to Austria. The office template of Ms. Schäfer (i.e. of Zeiler and Partner Attorneys-at-law) also notes that Ms. Schäfer is Partner and admitted in Germany & Austria, shows her personal business phone number being Austrian and lists the attorneys-at-law, the vast majority of whom is admitted in Austria (and even the rest is at least partially based in Vienna). It is not surprising that her recognitions and publications listed on the law firm's homepage are also linked to Austria.

Furthermore, despite currently being located in Paris, the Sole Arbitrator appointed in the present case is admitted in Austria and has been working as attorney in Austria for 10 years already. In her comments, the Sole Arbitrator confirmed that (as indicated in her CV), she is trained and qualified in Germany but also admitted to the Austrian bar and has extensive experience in Austrian law, having worked as attorney in Austria between 2007 and 2015 and again since 2022, but did not further comment this apparent proximity to Austria. The proximity to Austria is unfortunately vivid.

It is hence unsurprising that this does not disturb Respondents, who are all seated in Austria, as are all their company representatives, in addition to being represented by Austrian counsel. Claimant in turn is seated in Netherlands. However, **this creates a clear asymmetry and endangers the appearance of neutrality and procedural fairness to the detriment of Claimant**. It is with reason that ICC Rules (as do other international arbitral rules including *inter alia* LCIA Rules) stipulate that in confirming or appointing arbitrators, the Court shall consider the prospective arbitrator's nationality, residence and other relationships with the countries of which the parties or the other arbitrators are nationals and the prospective arbitrator's availability and ability to conduct the arbitration in accordance with the Rules; and unless the parties agree otherwise, no arbitrator shall have the same nationality of any party to the arbitration (Art 13 ICC Rules). Again: The parties did not agree to the appointment of an Austrian national to act as sole arbitrator, the appointment of Ms. Schäfer in the present case hence equals to, or at least can be qualified as, a circumvention thereof.²

Against this background, Claimant upholds its concerns and reiterates that despite the sole arbitrator's German nationality, one cannot overlook her close connection to Austria which in this case has the same weight as possessing its nationality and, in any event, the relationship of Ms. Schäfer to Austria being the country all Respondents are nationals of (i.e. being seated in) is imminent.

In this context Claimant also reminds that exactly in such cases, when faced with such a choice, arbitrators may find themselves gravitating toward laws with which they are more familiar with,³ this exact risk being apparent in the present case and representing a significant disadvantage for Claimant, besides being in direct contradiction of the Parties' agreement of the underlying Contract being governed by English law.

Respondents' second argument, purporting that it is not credible that Claimant expected that arbitrators with no proximity to Austria or knowledge of Austrian law will be appointed to decide these disputes⁴ appears in line with their consistent objections, in particular their objection to jurisdiction of the tribunal in the present case, but is wrong on two levels: Respondents' overlook the fact that while the SPA and

² As noted in the Letter of the ICC dated 1 August 2025.

³ Cf Challenge para with further reference to *Kim*, ICC Dossier No. 8: Is Arbitration only As Good as the Arbitrator? Status, Powers and Role of the Arbitrator (2011), pp. 65 et seq.

⁴ Respondents' comments dated 14 October 2025, page 3 bottom and page 4.

the Completion Memorandum are based on Austrian law, the parties could have, but did not agree that the SHA would be governed by Austrian law as well. To the contrary: the parties agreed that the SHA – being the contract the present claims are based on – is governed by English law. For the sake of clarity, it is noted that Claimant by no means objects to the Sole Arbitrator having knowledge of Austrian law in the present case, this is in fact favourable. The fact is however that English law is applicable and that the efficiency of proceeding as well as the principle of fairness and appearance of neutrality require a sole arbitrator based and versed in English law.

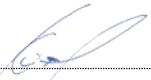
Respondents' argument that Austrian law would be decisive is procedurally motivated and in line with its jurisdiction objection and argument that a tribunal constituted under Vienna Rules would be competent in the present case and shall not be abused to undermine the relevance of the applicable law, in particular considering the difference between the English law being common law on the one side, and the continental background of Austrian law on the other side. Claimant reiterates that if Respondents' view were correct (*quod non*), the objection on jurisdiction would be justified and the arbitration would have to be conducted under the Vienna Rules and administered by VIAC – and neither Ms. Schäfer, nor any other arbitrator appointed by the ICC Court, would decide this dispute (on the merits). Thus, either Respondents succeed, in which case the arbitrator would have to find that he/she lacks jurisdiction, or the claims are found to be based on the SHA. In both cases Austrian law is not of (primary) relevance, in the latter case it is clearly English law. Respondents' argument based on the applicable law being contested by them lack any merit.

In summary, while Claimant by no means questions Ms. Schäfer's integrity, experience and competence in general and notes that her professional accomplishments command respect, the principles of efficiency, fairness and neutrality demand that the sole (!) arbitrator to decide on the dispute between Claimant and Respondents in the present case holds required qualifications under English law and does not have such strong ties to the country all Respondents are based in, endangering the appearance i.e. perception of national *neutrality* of the tribunal.

Request

Claimant hence upholds its request and respectfully requests the ICC Court to appoint a sole arbitrator in line with the required criterion, with legal background under English law, including expertise in contractual interpretation, shareholder rights and remedies, joint venture arrangements, and put option mechanics under English law, and to thereby preserve (also appearance of) the neutrality of the tribunal.

Yours faithfully,



CMS Reich-Rohrwig Hainz

Rechtsanwälte GmbH



Luthra and Luthra

Law Offices India